

Law & Data — Collection of Open Questions

Note to the reader. This document collects open questions from previous academic years' exams. No model answers are provided. Where an official grading guideline existed — specifying the points or concepts that a correct answer should cover — it is reproduced under an *Official suggestions* heading below the relevant question. For all other questions, a structured list of topics that a comprehensive answer should address is provided as a study guide.

1. Please identify and illustrate three legal problems posed by social credit systems in no more than 150 words. (Summary: §12.3)

Unofficial suggestions:

- **Privacy and data protection:** mass collection, aggregation, and continuous monitoring of personal data; lack of genuine consent or transparency; reference to GDPR principles and Art. 8 CFR.
 - **Discrimination and equality:** opaque automated scoring producing unjustified differential treatment; risk of social exclusion without adequate redress.
 - **Due process and rule of law:** sanctions imposed without clear legal basis, procedural safeguards, or effective remedies; chilling effects on freedom of expression and association.
 - AI Act (Regulation 2024/1689, Art. 5): government social scoring classified as unacceptable-risk practice and prohibited outright.
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2. Please explain the main principles for personal data processing in no more than 200 words.
(Summary: §8.3)
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Unofficial suggestions:

- Source: Art. 5 GDPR (seven principles).
 - **Lawfulness, fairness, transparency:** valid legal basis (Art. 6); fair to data subjects; clear information on purposes, controller identity, and data subjects' rights.
 - **Purpose limitation:** collected for specified, explicit, legitimate purposes; no incompatible further processing.
 - **Data minimisation:** only adequate, relevant, and necessary data.
 - **Accuracy:** data must be correct and up to date; inaccurate data must be rectified or erased.
 - **Storage limitation:** identifiable no longer than necessary; Art. 17 obligation to erase once purpose lapses.
 - **Integrity and confidentiality:** appropriate TOMs against unauthorised access or destruction.
 - **Accountability:** controllers must be able to demonstrate compliance; rooted in Convention 108.
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3. Please illustrate in no more than 100 words the EU personal data protection package adopted since 2016. (Summary: §10.2)
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Unofficial suggestions:

- **GDPR** (Regulation 2016/679): comprehensive framework for personal data processing in and outside the EU.
 - **Law Enforcement Directive** (2016/680): data protection in the police and criminal justice sector; replaced Framework Decision 2008/977/JHA.
 - **ePrivacy Directive** (2002/58/EC): personal data in the electronic communications sector; remains in force.
 - **Regulation 2018/1725**: extends equivalent standards to EU institutions, bodies, and agencies.
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4. Please describe in no more than 250 words the 2020 European Data Strategy conceived by the European Union. (Summary: §10, §10.1, §10.3)

Official suggestions:

- (a) The GDPR that paved the way to the 2020 European Data Strategy.
 - (b) Aims of the EU Data Strategy: free flow of personal data, free flow of non-personal data, single market for data.
 - (c) EU Data Strategy Package: Data Governance Act, Digital Services Act, Digital Markets Act, Artificial Intelligence Act, Data Act (a summarized description of their contents).
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5. Please explain the so-called “Barbra Streisand Effect” in no more than 100 words. (Summary: §12.4)

Official suggestions:

- (a) A brief summary of the facts of the case.
 - (b) Description of the Effect: the protection of privacy through legal means can backfire and worsen the situation of the individual.
 - (c) Takeaways:
 - the legal protection of privacy can consist in avoiding seeking legal protection;
 - the legal vindication of privacy is different—and sometimes opposite—from the social enjoyment of privacy.
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6. Please describe any legal provision included in EU primary law sources setting out the right to personal data protection in max 250 words. (Summary: §7.1)

Official suggestions:

- (a) Personal data protection in the TEU, starting from the values of the EU as protected by article 2 TEU and the protection thereof set out in article 3 TEU.
 - (b) Personal data protection as set forth by article 16 TFEU.
 - (c) The fundamental right to data protection in the Charter of Fundamental Rights (article 8 CFR) and possible reference to article 7 CFR on the right to privacy (and their differences).
 - (d) Possible limitations of fundamental rights and, specifically, of the right to data protection in light of the safeguard clause (article 52 CFR)—the balancing of conflicting rights.
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7. Please describe the structure of the “proportionality scrutiny” in no more than 200 words.
(Summary: §12.2)

Official suggestions:

- (a) Does the measure under scrutiny pursue a legitimate goal?
 - (b) Is the measure concretely connected with the purported goal (the “rational connection” step—some courts omit it)?
 - (c) Is the measure necessary to pursue that goal? (the “least restrictive means” step)
 - (d) Are the benefits more than the sacrifices that the measure causes to the interests and rights that are involved?
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8. Please explain what ‘personal data’ means according to the EU personal data protection legislation and the difference with sensitive personal data in no more than 200 words. (Summary: §8.2, §8.4)

Official suggestions:

- (a) Definition of personal data according to article 4(1) of the GDPR.
 - (b) Definition of sensitive data, even involving article 9 GDPR.
 - (c) Differences in the processing of personal data and sensitive personal data.
 - (d) Lawful reasons for processing personal data and sensitive personal data with or without data subjects’ consent.
 - (e) Possible references to the origins of the definition of personal data and sensitive personal data (Convention 108, OECD Guidelines).
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9. Please describe which are the main rights recognized to a data subject by the GDPR in max 250 words. (Summary: §8.7, Table A.1)

Official suggestions:

- (a) Right to access.
 - (b) Right to data rectification.
 - (c) Right to data erasure—right to be forgotten.
 - (d) Right to processing restriction.
 - (e) Right to data portability.
 - (f) Right to limit the processing.
 - (g) Right to object to data processing.
 - (h) Right to lodge a complaint before the NSA.
 - (i) Right to seek legal redress before Courts.
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10. Why is the notion of synthetic data relevant in the field of privacy protection? How would you define synthetic data? (Summary: §12.5)
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Unofficial suggestions:

- **Definition:** artificially generated data reproducing statistical properties of real datasets without referring to identifiable individuals; academic definition (no specific EU legislation yet).
 - **Relevance to privacy:**
 - Robust anonymisation: significantly reduces re-identification risk.
 - Data sharing and collaboration: share datasets without exposing real personal data.
 - Data scarcity: reliable alternative for ML training when real data is limited or sensitive.
 - **Relationship to GDPR:** generally falls outside scope because it does not relate to identifiable individuals.
 - **Distinctions:** vs. anonymised data (loses detail, less useful for algorithms); vs. pseudonymised data (remains personal data under GDPR).
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11. Please describe how the right to privacy evolved into the right to personal data protection in no more than 150 words. (Summary: §6.4)
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Unofficial suggestions:

- Privacy as originally conceived: negative, liberty-based right against intrusion (UDHR Art. 12, 1948; ECHR Art. 8, 1950; ICCPR, 1966).
 - Limitation: insufficient for the era of large-scale data processing (systematic collection, storage, and use of personal information).
 - Emergence of personal data protection as a distinct right:
 - OECD Privacy Guidelines (1980): first universal principles for data processing.
 - Convention 108 (CoE, 1981): first binding international instrument on data protection.
 - EU: autonomous fundamental right under Art. 8 CFR (binding 2009) and Art. 16 TFEU.
 - Conceptual shift: liberty-based → dignity-based approach (individual control; protection from surveillance, profiling, manipulation).
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12. Please describe a Data Protection Impact Assessment and its aims in no more than 150 words. (Summary: §8.6)
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Unofficial suggestions:

- **What it is:** preventive procedural tool under Art. 35 GDPR.
 - **When mandatory:** processing likely to cause high risk to rights and freedoms (e.g., large-scale sensitive data, systematic monitoring of public spaces, solely automated decisions with significant effects).
 - **Required content:**
 - Systematic description of processing operations and purposes.
 - Necessity and proportionality analysis.
 - Risk assessment identifying risks to data subjects.
 - Mitigation measures (TOMs).
 - **Underlying principle:** embodies GDPR's risk-based approach — proactive identification and addressing of privacy risks *before* processing begins.
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13. Please describe in no more than 150 words the difference between EU regulations and directives. (Summary: §5.3)
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Unofficial suggestions:

- Legal basis: Art. 288 TFEU (two main types of binding legislative act).
 - **Regulation:** binding in its entirety; directly applicable in all member states; no national transposition required; uniform, simultaneous application.
 - **Directive:** binding as to the result; member states choose form and method; must transpose before the implementation deadline; after deadline, clear, precise, and unconditional provisions acquire direct effect (individuals may rely on them before national courts).
 - Other secondary acts: decisions (binding on those addressed); recommendations and opinions (soft law, non-binding).
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14. Please describe the main subjects involved in personal data processing activities and their rights and obligations according to the GDPR in no more than 200 words. (Summary: §8.7, Table A.2)
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Unofficial suggestions:

- **Data subject:** identified/identifiable natural person; holds enforceable rights (access, rectification, erasure, portability, restriction, objection, complaint, judicial redress).
 - **Controller:** determines purposes and means of processing; primary accountability; TOMs, records of processing activities, DPO where required; concept of joint controllers.
 - **Processor:** processes on behalf and on instructions of controller; Art. 28 contract required; sub-processors; implements TOMs.
 - **Data Protection Officer (DPO):** mandatory when (public authorities; large-scale systematic monitoring; large-scale special categories); advises on compliance; interface with supervisory authorities.
 - **Supervisory authority:** independent national body (Art. 51 GDPR; Art. 8 CFR); handles complaints; monitors GDPR application; cooperates via EDPB.
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15. Please describe in no more than 150 words the legal status of EU regulations. (Summary: §5.3)
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Unofficial suggestions:

- Source: Art. 288 TFEU (secondary law).
 - **Binding in entirety:** no discretion for member states as to content.
 - **Directly applicable:** enforceable without national transposition; uniform, simultaneous application across all member states.
 - **Primacy of EU law** (*Costa v. ENEL*, 6/64, 1964): national law incompatible with a regulation must be set aside.
 - **Hierarchy:** below primary law (TEU, TFEU, Charter, general principles) and international agreements; above national law.
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16. Please describe the differences of processing activities involving personal data and sensitive personal data in no more than 150 words. (Summary: §8.2, §8.4)
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Unofficial suggestions:

- **Personal data** (Art. 4(1) GDPR): six lawful bases in Art. 6 (consent; contract; legal obligation; vital interests; public-interest task; legitimate interests of controller/third party).
 - **Sensitive data / special categories** (Art. 9 GDPR): racial or ethnic origin, political opinions, religious/philosophical beliefs, trade-union membership, genetic/biometric data, health data, sex life/sexual orientation.
 - Processing of sensitive data: **prohibited in principle**; exhaustive list of exceptions (explicit consent; employment/social-security law; vital interests; legal claims; substantial public interest or public health; non-profit activities; research).
 - Rationale: higher risk of discrimination and harm.
 - Historical origins: Convention 108 (1981); OECD Guidelines (1980).
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17. Please describe the evolution of [personal] data protection legislation in the EU legal system in no more than 12 lines. (Summary: §7 (table), §7.1, §5.1, §8, §10.2)

Official suggestions:

- (a) Directive 95/46/EC (liability approach).
- (b) Nice Charter, articles 7 and 8.
- (c) Articles 2 and 3 of the TEU.
- (d) Article 16 of the TFEU.
- (e) Article 39 of the TEU.
- (f) Charter of Fundamental Rights, articles 7 and 8.
- (g) Shift to a compliance approach → GDPR.
- (h) Data Protection Package.
- (i) Reference to CoE (i.e. case-law).
- (j) Possible references to other EU directives and regulations.

(References to Convention 108 and Convention 108+, as well as to the OECD Guidelines or to the UN Declaration of Human Rights or the ECHR were useful, but did not directly concern the European Union legal system, rather belonging to different legal systems—respectively, CoE and OECD.)

18. Please describe the development of EU secondary law (from directives to regulations) of personal data and the reasons underlying said development in no more than 15 lines. (Summary: §5.3, §8, §9.3, §10.2)
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Official suggestions:

- (a) Directive 95/46.
 - (b) GDPR 2016/679.
 - (c) Regulation 2018/1725.
 - (d) Directive 2016/680 (on prevention, investigation, detection, prosecution of criminal offences).
 - (e) EU Data Protection Package.
 - (f) Using directives shifted to the use of regulations to ensure a compliance-oriented approach.
 - (g) More harmonization within the EU (reason for the shift from directives to regulations).
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Additional unofficial questions. The following questions are *unofficial*: they were not drawn from past exams but mirror the spirit of the questions above, extended to topics of the source material not yet covered. No model answers are provided. Each question maps every relevant source of truth — **Laws** refers to `laws.pdf`, **Summary** to `summary.pdf`.

19. Please describe the risk-based framework of the AI Act (Regulation 2024/1689) and its risk tiers in no more than 200 words. (*Unofficial. Summary: §11.1, §11.4*)
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Unofficial suggestions:

- Source: AI Act = Regulation 2024/1689; first comprehensive, risk-based regulation of AI.
- **Rationale:** a harmonised EU framework is needed to (i) avoid **fragmentation** of the single market, (ii) ensure a **level playing field** and fair competition, (iii) build **trust** to encourage adoption.
- **Four risk tiers:**
 - **Minimal risk** (e.g. spam filters) — no obligations.
 - **Limited risk** (e.g. chatbots) — transparency duties.
 - **High risk** (e.g. recruitment, medical devices) — strict requirements.
 - **Unacceptable risk** (e.g. government social scoring) — prohibited.
- Logic: obligations scale with the level of risk posed.

20. Please describe the practices prohibited under Article 5 of the AI Act in no more than 150 words. (*Unofficial. Summary: §11.5*)
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Unofficial suggestions:

- Source: Art. 5 AI Act — unacceptable-risk practices, prohibited outright.
 - **Subliminal techniques:** manipulation via hidden triggers causing harmful decisions.
 - **Exploiting vulnerabilities** of age, disability, social or economic situation.
 - **Social scoring:** ranking by behaviour/characteristics (cf. China Social Credit System).
 - **Predictive policing** based *solely* on profiling/personality traits (exception: supporting human assessment based on objective facts).
 - **Untargeted facial scraping** to build face databases from internet/CCTV.
 - **Emotion inference** in the workplace or education institutions.
 - **Biometric categorisation** to deduce sensitive traits (race, political opinions, trade-union membership, religion, sex life/orientation).
 - **Real-time remote biometric identification** in public spaces for law enforcement — with narrow exceptions (search for abduction/trafficking/missing victims; imminent threat/terrorist attack; locating a suspect of an Annex II offence punishable by ≥ 4 years).
 - Recitals 15–16: identification excludes mere verification/authentication; categorisation excludes ancillary commercial features.
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21. Please describe how high-risk AI systems are classified and the main requirements imposed on them in max 250 words. (*Unofficial. Summary: §11.6, §11.7*)
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Unofficial suggestions:

- **Two routes to high-risk** (Art. 6):
 - Route 1 (product safety): the AI is a safety component of, or is, a product covered by Annex I harmonisation legislation requiring third-party conformity assessment.
 - Route 2 (use case): the AI falls under an Annex III use case (biometrics; critical infrastructure; education; employment; essential services incl. credit scoring; law enforcement; migration & borders; justice & democracy).
 - **Derogation** (Art. 6): not high-risk if it performs only a narrow procedural task, improves a prior human activity, detects deviations without replacing human assessment, or is preparatory — **but always high-risk if it profiles** natural persons.
 - **Requirements (Art. 9–15)**, verified via conformity assessment by a notified body: risk management system (9); data governance & bias mitigation (10); technical documentation (11); record-keeping/logging (12); transparency to users (13); human oversight (14); accuracy, robustness, cybersecurity (15).
 - Summarised provider obligations: **transparency, fairness** (no discrimination), **accountability**.
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22. Please describe Convention 108 and Convention 108+ and their role in data protection in no more than 150 words. (*Unofficial. Laws: §2.2, §2.3; Summary: §7*)
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Unofficial suggestions:

- Council of Europe instruments (a legal order separate from the EU); enforcement **cannot** be judged by the ECtHR (its jurisdiction is limited to the ECHR).
 - **Convention 108** (28 January 1981, “Data Privacy Day”): protection of individuals w.r.t. **automated processing** of personal data; **first binding international instrument** on data protection (binding on contracting states); open to signature beyond the CoE.
 - Content of 108: recalls the OECD principles; covers **public and private** sectors; basis for transborder data flows and police/enforcement processing; source of the GDPR **accountability** principle.
 - **Convention 108+** (18 May 2018): modernisation by the contracting states; standards evolve with technology.
 - Significance: adopted days before GDPR application (25 May 2018) — the two orders aligned (transborder flows, fair & lawful collection, purpose limitation, storage duration, data quality, sensitive data, right to know & rectify).
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23. Please describe the OECD Privacy Guidelines (1980) and their influence on data protection law in no more than 150 words. (*Unofficial. Laws: §1.4; Summary: §7*)
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Unofficial suggestions:

- Adopted **1980** (Paris); OECD = Organisation for Economic Cooperation and Development; **soft law** (not enforceable before a court).
 - **First international instrument** to set principles for processing personal data; universal standards balancing data-subject rights against controllers' needs.
 - **Eight principles**: collection limitation; data quality; purpose specification; use limitation; security safeguards; openness; individual participation; accountability.
 - **Influence**: ancestors of the GDPR principles; recalled by Convention 108 (1981).
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24. Please describe the protection of privacy under Article 8 ECHR and the role of the European Court of Human Rights in no more than 150 words. (*Unofficial. Laws: §2.1; Summary: §7*)
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Unofficial suggestions:

- **ECHR** = Council of Europe instrument (completed 1950); sets out rights, procedures and institutions, including the **European Court of Human Rights (ECtHR)**, Strasbourg.
 - CoE is a separate legal order from the EU (46 member states; Russia expelled); the ECtHR is competent **only over the ECHR**.
 - **Art. 8**: right to respect for private and family life; no interference by a public authority **except** as provided by law and necessary in a democratic society (national security, public safety, prevention of crime, protection of health/rights of others).
 - **Role of the ECtHR**: applies Art. 8 even recently to rule on privacy *and* on unlawful processing of personal data.
 - Placement: 1950 — an early, **negative**/liberty-based privacy instrument predating dedicated data-protection law.
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25. Please distinguish the European Union, the Council of Europe, and the OECD as legal systems relevant to data protection in no more than 200 words. (*Unofficial. Summary: §2.1, §3.4; Laws: §1, §2*)
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Unofficial suggestions:

- Three **distinct legal orders** relevant to data protection.
 - **EU**: supranational “new legal order”; binding hard law with sanctions; primary + secondary law (GDPR, Art. 16 TFEU, Art. 7/8 CFR).
 - **Council of Europe (CoE)**: 46 member states; upholds human rights, democracy, rule of law; runs the **ECHR** + **ECtHR** (Strasbourg) and Convention 108/108+; binding instruments; relevant to the right to privacy. Separate from the EU.
 - **OECD**: Organisation for Economic Cooperation and Development; produces **soft law** (Privacy Guidelines 1980); not enforceable before a court; sets influential principles.
 - Key contrast: EU and CoE **expressly provide sanctions** for states (hard law); OECD/UN instruments are largely soft law (morally/politically binding only).
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26. Please describe the ePrivacy Directive (2002/58/EC) and its scope in no more than 150 words. (*Unofficial. Summary: §9.1; Laws: §4.2*)
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Unofficial suggestions:

- Source: Directive 2002/58/EC; regulates personal data **and data in general** in the **electronic communications** sector; still in force; a directive — **needs transposition** per member state.
 - Coverage: confidentiality of communications, **cookies**, unsolicited marketing, breach notification.
 - Key definitions: user/subscriber; **traffic data**; **location data**; communication.
 - Obligations: providers must take technical/organisational security measures; member states must ensure confidentiality of communications and traffic data.
 - Unsolicited communications/automated calls require **prior consent**; subscribers may object freely; directories need consent.
 - Relationship: complemented by the European Electronic Communications Code (Dir. 2018/1972) for non-personal/general data.
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27. Please describe the Law Enforcement Directive (2016/680) and why a separate instrument was adopted in no more than 150 words. (*Unofficial. Summary: §9.3; Laws: §4.2*)
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Unofficial suggestions:

- Source: Directive (EU) 2016/680; data protection in the **police/criminal** sector (prevention, investigation, detection, prosecution; execution of penalties). A directive — needs transposition.
 - Adopted June 2016; **replaced Framework Decision 2008/977/JHA**.
 - **Why separate:** the GDPR does not cover law-enforcement processing; a dedicated regime balances data protection against policing needs and facilitates cross-border exchange.
 - Key features: data protection by design/default for police; breach notification to supervisory authorities; mandatory DPOs; automated decisions must not rely on sensitive data nor discriminate.
 - Context: the Data Retention Directive 2006/24/EC was struck down in *Digital Rights Ireland*.
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28. Please describe data protection by design and by default (Article 25 GDPR) in no more than 150 words. (*Unofficial. Summary: §8.5; Laws: §4.4*)
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Unofficial suggestions:

- Source: Art. 25 GDPR.
 - **By design** (proactive): the controller must, **both at the time of determining the means and at the time of processing**, implement appropriate TOMs (e.g. pseudonymisation) to implement data-protection principles (e.g. data minimisation) and integrate the necessary safeguards to meet GDPR requirements and protect data subjects' rights.
 - **By default**: the controller must ensure that, by default, **only personal data necessary for each specific purpose** are processed — covering the **amount** collected, the **extent** of processing, the **storage period** and **accessibility**; by default data must not be made accessible to an indefinite number of persons without the individual's intervention.
 - Underlying logic: embeds GDPR principles (minimisation, security) into systems from the outset.
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29. Please describe the hierarchy of the sources of EU law in no more than 150 words. (*Unofficial. Summary: §2.3, §14.4; Laws: §3*)
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Unofficial suggestions:

- Principle: higher sources cannot be contradicted by lower ones (“reversed pyramid”), with limited exceptions.
 - **Order:** primary law > international agreements > secondary law > supplementary law.
 - **Primary law** (top): treaties (TEU, TFEU), Charter of Fundamental Rights, general principles developed by the Court of Justice; cannot be contradicted by lower sources.
 - **International agreements:** concluded by the EU (Art. 216–218 TFEU); bind the EU and member states.
 - **Secondary law:** regulations, directives, decisions, recommendations/opinions (Art. 288 TFEU).
 - **Supplementary law:** CJEU case law + general principles.
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30. Please summarise the *Van Gend en Loos* case (26/62, 1963) and the principle it established in no more than 150 words. (*Unofficial. Summary: §12.1; Laws: §6*)
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Unofficial suggestions:

- **Facts:** a Dutch transport firm imported a chemical from West Germany and was charged a customs duty it believed breached the Treaty of Rome (which aimed to abolish such duties).
 - **Forum:** sued before the Dutch first-instance customs court, which referred the question to the **ECJ** via preliminary ruling.
 - **Ruling:** the EU created a **new legal order** whose law is an integral part of member states' systems and has **direct effect** — individuals may invoke Treaty provisions before national courts.
 - **Principle/consequence:** foundation of the doctrine of **direct effect**; citizens (not only states) can enforce EU law nationally.
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31. Please summarise the *Costa v. ENEL* case (6/64, 1964) and the principle it established in no more than 150 words. (*Unofficial. Summary: §12.1; Laws: §6*)
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Unofficial suggestions:

- **Facts:** Italy nationalised electricity (creating ENEL); Mr Costa, an Edisonvolta shareholder, refused to pay his electricity bill, claiming the nationalisation breached the Treaty of Rome and the Italian Constitution.
 - **Forum:** parallel suits before a Milan justice of the peace — one referred to the Italian Constitutional Court, one to the **ECJ**.
 - **Ruling:** the Community is a **New Legal Order** for which states **permanently limited their sovereign rights**; Costa lacked standing to block the nationalisation but could raise EU-law incompatibility before his national court.
 - **Principle:** **primacy** of EU law over conflicting national law.
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32. Please summarise the *Schrems v. Facebook* case (2015) and its consequences for transatlantic data transfers in no more than 150 words. (*Unofficial. Summary: §12.1; Laws: §6*)
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Unofficial suggestions:

- **Facts:** activist Max Schrems complained that Facebook (EU-subject, US-based) transferred EU users' personal data to the US, where post-Snowden mass surveillance gave no **adequate** protection — breaching the fundamental right to data protection.
 - **Forum:** complaint to the Irish data-protection authority, then referred to the **ECJ**.
 - **Ruling:** the ECJ declared the EU–US **Safe Harbor** agreement **void** for failing to ensure protection equivalent to the EU's.
 - **Consequences:** transatlantic transfers had to be re-grounded; a new agreement with **improved standards** followed (US protection levels raised).
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33. Please summarise the *Google Spain — Costeja Gonzalez* case (C-131/12, 2014) and the “right to be forgotten” it established in no more than 150 words. (*Unofficial. Summary: §12.1, §8.7; Laws: §6, §4.4*)
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Unofficial suggestions:

- **Facts:** Mario Costeja Gonzalez found that Google searches on his name still linked to old newspaper articles about a resolved debt, damaging his reputation without present public interest.
 - **Forum:** complaint to the Spanish data-protection authority against Google Spain; referred to the **ECJ**.
 - **Ruling (2014):** search engines are **controllers**; established the **Right to be Forgotten** — individuals may request **de-listing** of outdated/irrelevant personal information lacking public interest (cf. Art. 17 GDPR, right to erasure).
 - **Consequences:** de-listing right exercisable EU-wide; requires a **proportionality** balance between privacy and the public’s right to information.
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34. Please summarise the *Digital Rights Ireland* case (C-293/12 + C-594/12) and its consequences for mass data retention in no more than 150 words. (*Unofficial. Summary: §12.1, §12.2; Laws: §6*)
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Unofficial suggestions:

- **Facts:** the **Data Retention Directive (2006/24/EC)** obliged providers to retain traffic/location data en masse for law enforcement — challenged as a disproportionate interference with privacy and data protection.
 - **Forum:** references from the Irish High Court and the Austrian Constitutional Court to the **ECJ**.
 - **Ruling:** the directive was **declared invalid** for failing the proportionality and necessity tests (blanket, untargeted retention).
 - **Consequences:** mass data-retention regimes lost their EU legal basis; reaffirmed **proportionality** as the limit on surveillance measures (cf. the proportionality scrutiny: legitimate goal → rational connection → necessity → proportionality *stricto sensu*).
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